

24SMCV00690 24SMCV00690

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-08-25

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Case Number: 24SMCV00690 Hearing Date: August 25, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ANGEL HO,

Plaintiffs,

v.

BEN SAYANI, et al.,

Defendants.

Case No.: 24SMCV00690

Hearing Date: August 25, 2026

[TENTATIVE] order RE:

plaintiff's motion to correct

minute order of july 13, 2026

This case arises from a breach of lease agreement. Plaintiff entered into a residential lease agreement with Defendants Ben Sayani and Valeh Raissi. Defendants failed to pay rent, claiming that they were unable to do so because of the COVID epidemic.

The parties entered into a stipulated judgment, which was entered on July 3, 2025. Pursuant to the stipulation, Defendants were obligated to pay \$196,625.00 plus costs of \$750.00. However, the stipulated judgment would be stayed so long as Defendants made a payment of \$50,000 on June 30, 2026 and \$75,000 on June 30, 2027, for a total of \$125,000 (a discount from the stipulated judgment). If Defendants failed to make the payments timely, then there would be no discount, and the entire unpaid amount of the judgment plus 10% interest from July 2, 2025 would be due, less credit for any payments made.

On July 10, 2026, Plaintiff's counsel filed a declaration, attesting that Defendants have not made any payments. On July 13, 2026, the Court held an order to show cause ("OSC") re execution of judgment. The Court's minute order states: "No cause having been shown, the stipulated judgment is entered in the amount of \$196,625 plus costs of \$750. Judgment is entered this date."

Plaintiff now seeks to correct the minute order. Instead of the quoted language above, Plaintiff requests that the order state: "Good cause having been shown the stay of execution is dissolved as to the Stipulated Judgment previously entered on July 3, 2025." Plaintiff's motion is unopposed.

Code of Civil Procedure section 473(d) allows the Court to correct clerical mistakes in judgments or orders to make them conform to the intended decision. The Court agrees with Plaintiff that there was a clerical error in the Court's July 13, 2026 minute order. The Court's July 13 order mistakenly stated that judgment was being entered on that date, but stipulated judgment had already been entered on July 3, 2025. Accordingly, the Court grants Plaintiff's motion to correct the Order.

Instead of "No cause having been shown, the stipulated judgment is entered in the amount of \$196,625 plus costs of \$750. Judgment is entered this date", the Court's July 13, 2026 minute order should state: "Good cause having been shown, the stay of execution on the Stipulated Judgment (previously entered on July 3, 2025) is now dissolved."

IT IS SO ORDERED.

DATED: August 25, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court